CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

# COUR EUROPÉENNE DES DROITS DE L'HOMME
# EUROPEAN COURT OF HUMAN RIGHTS

## FIRST SECTION

## DECISION

## AS TO THE ADMISSIBILITY OF

Application no. 59491/00
by the United Macedonian Organisation Ilinden and Others
against Bulgaria

The European Court of Human Rights (First Section), sitting on 9 September 2004 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr P. LORENZEN,
Mrs F. TULKENS,
Mrs N. VAJIĆ,
Mrs S. BOTOUCHAROVA,
Mr A. KOVLER,
Mr V. ZAGREBELSKY, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 28 March 2000,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having deliberated, decides as follows:

# THE FACTS

The first applicant, the United Macedonian Organisation Ilinden ("Ilinden"), is an association based in south-west Bulgaria, in an area known as the Pirin region or the geographic region of Pirin Macedonia. The other applicants, Mr Iordan Kostadinov Ivanov, Mr Boris Georgiev Pavlov, Mr Atanas Dimitrov Urdev, Mr Lubcho Kirilov Popovchev, Mr Boris Atanasov Stankov, Mr Bojidar Kostadinov Kirianov, Mr Velik Dimitrov Hristoskov, Mr Kiril Serafimov Tilev and Mr Alexander Velev Manchev, are Bulgarian nationals who were born in 1932, 1938, 1929, 1949, 1926, 1954, 1933, 1951 and 1964 respectively and live in Sandanski, Krupnik, Blagoevgrad and Petrich. They are the members of the management committee of Ilinden. The applicants are not legally represented. The respondent Government are represented by Ms M. Dimova, co-agent, of the Ministry of Justice.

## A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

### *1. Background*

#### (a) The 1990-91 refusal to register Ilinden (before the Convention's entry into force in respect of Bulgaria on 7 September 1992)

Ilinden was founded on 14 April 1990. Its aims, according to its articles of association and programme, were to "unite all Macedonians in Bulgaria on a regional and cultural basis" and to achieve "the recognition of the Macedonian minority in Bulgaria". Clauses 8 and 9 of the articles stated that the organisation would not infringe the territorial integrity of Bulgaria and "would not use violent, brutal, inhuman or unlawful means".

In 1990 Ilinden applied for, but was refused, registration. In the proceedings for registration the Blagoevgrad Regional Court and the Supreme Court examined its articles of association, its programme and other written evidence.

In their decisions of July and November 1990 and March 1991 the courts found that Ilinden's aims were directed against the unity of the nation, that it advocated national and ethnic hatred and that it was dangerous for the territorial integrity of Bulgaria. Therefore, its registration would have been contrary to Articles 3, 8 and 52 § 3 of the Constitution of 1971, as in force at the time. In particular, the aims of the association included the "political development of Macedonia" and the "united, independent Macedonian State". Moreover, in its appeal to the Supreme Court the association had stated that "the Macedonian people [would] not accept Bulgarian, Greek or

Serbian rule". The formal declaration in its articles of association that it would not infringe the territorial integrity of Bulgaria appeared inconsistent with the remaining material.

The judgment of the Supreme Court of 11 March 1991 stated, *inter alia*:

> "[T]he courts below correctly established that the aims of [Ilinden] under its articles of association and programme were directed against the unity of the nation... [The material in the case] demonstrates that [Ilinden] seeks to disseminate the ideas of Macedonianism among the Bulgarian population, especially in a particular geographical area. [Those ideas] presuppose the 'denationalisation' of the Bulgarian population and its conversion into a Macedonian population... It follows that [Ilinden] is directed against the unity of the nation and is therefore prohibited under Article 35 § 3 of the [1971] Constitution..."

**(b) Events organised by Ilinden**

Throughout the period 1990-2003 Ilinden organised commemorations of historical events every year on dates in April, August and September. When the authorities banned those meetings, they often did it with the motive that the organisation had not been registered. In some instances the courts refused to examine appeals against such bans on the same ground (for the period 1994-97 see *Stankov and the United Macedonian Organisation Ilinden v. Bulgaria*, nos. 29221/95 and 29225/95, §§ 21, 25, and 29-30, ECHR 2001-IX and for the period 1998-2003 see *The United Macedonian Organisation Ilinden and Ivanov v. Bulgaria* (dec.), no. 44079/98, 9 September 2004).

*2. The 1998-99 proceedings for the registration of Ilinden*

On 26 October 1997 the applicants, together with nine other persons, held a meeting in Petrich. There are two versions of the minutes of the meeting. The first one states that the participants adopted a resolution to re-apply for registration of Ilinden. The second one states that 16 of the 18 persons present decided to found a non-profit-making association named Ilinden. Both versions state that the persons present adopted the articles and elected the management committee of the association.

The relevant clauses of the articles of association of Ilinden adopted at that meeting read:

> "1. [Ilinden] is a Macedonian national organisation on ethnical basis and origin ... which is the successor and continuer of the national liberation struggle of the Macedonian nation ... and of the Macedonian fighters who have fallen victim to the Bulgarian State terrorism and genocide.
>
> 2(1) Ilinden recognises and respects the territorial integrity of the Republic of Bulgaria and its laws and Constitution if they are consistent with international law and international agreements on human rights, fundamental freedoms and the rights of minorities.

2(2) [Ilinden] supports the international law [rules providing that] borders between countries may be altered peacefully through negotiations.

3. The goals and objects of [Ilinden] ... [are] to express and defend the civil, political, national and social and economic rights of Macedonians living on Macedonian land under Bulgarian occupation (jurisdiction) and of the Macedonians living in Bulgaria.

4(1) [Ilinden] will protect the Macedonians subjected to assimilation by the Bulgarian nationalistic policies.

4(2) [Ilinden will seek the r]ecognition of a status of cultural autonomy to Pirin Macedonia [in order to] halt the process of assimilation of the Macedonians.

...

4(5) [and the g]iving of autocephalous status of the Macedonian church in Pirin Macedonia with a view to cutting off the assimilation activities of the Bulgarian priests.

...

5. [Ilinden] will strive towards ... liberating the Macedonians from the feelings of fear of the discrimination and assimilation policies of the [Bulgarian State].

...

7(2) [The means employed by Ilinden for achieving its goals shall be] ... the holding of peaceful assemblies, meetings, marches and demonstrations...

7(3) Participation in elections through nomination of independent candidates Macedonians.

...

8(2) Every Macedonian, as well as a citizen with a different ethnicity, may become a member of the organisation."

On 16 March 1998 the applicants lodged an application for the registration of the association with the Blagoevgrad Regional Court. They also submitted to the court a copy of the first version of the minutes of the October 1997 meeting, signed by 18 persons. The court found that one person had not signed the application and that the submitted copy of the articles of association had not been signed, and invited the applicants to submit duly signed copies of the application for registration and of the articles. It also instructed them to file a copy of the resolution for the founding of Ilinden. On 6 April 1998 one of the applicants filed a duly signed application and an unsigned copy of the articles of association. On 2 June 1998 an unsigned copy of the second version of the minutes of the October 1997 meeting, containing a resolution for the founding of Ilinden

and the names of 18 purported founders, was filed with the court. A hearing was held on 19 June 1998. On 10 July 1998 a copy of the second version of the minutes, signed by 15 persons, was filed with the court. At a hearing held on 29 September 1998 the applicants stated that this second version had been drafted by an attorney and had been signed by the founders before the first hearing on 19 June 1998. The court admitted the document in evidence.

The Blagoevgrad Regional Court gave judgment on 2 November 1998. It rejected the application in the following terms:

> "By section 136(1) of the Persons and Family Act, the application for registration of a non-profit-making association must be accompanied by a resolution for its founding [and] its articles of association, signed by the founders...
>
> In their application for registration the members of the management committee state that in 1990 the organisation was denied registration ..., which may lead to the conclusion that the resolution for the founding of Ilinden was adopted ... at the latest in 1990. This conclusion is supported by the first version of the minutes of 26 October 1997. This version states that at a meeting held on 26 October 1997 in Petrich, with 18 persons present, the question of the re-registration of Ilinden was discussed...
>
> In a letter of 30 April 1998 the court instructed the applicants to submit a resolution for the founding of the association. In compliance with this instruction the applicants submitted unsigned minutes dated 26 October 1997, which reflect a different agenda and different decisions. These new minutes contain an express resolution for the founding of Ilinden, for the adoption of its articles of association and the electing of a management committee. The heading of these minutes indicates that 17 persons were founders. An additional, signed version of these minutes bears the signatures of 15 persons. Three of the alleged founders ... have not signed the minutes of 26 October 1997, while the minutes state that the resolution for the founding of the association was adopted by unanimity. However, these persons have signed the [first version of the minutes], which contain the resolution to re-register Ilinden. [During the hearing] on 29 September 1998 the members of the management committee averred that there had only been one meeting, [which took place] on 26 October 1997. In view of these circumstances, the court considers that it has not been categorically established that a resolution for the founding of Ilinden was adopted on 26 October 1997. It is unclear who the founders were, because there are two versions of the minutes of the same date, signed by different persons and having different contents. Thus, one of the absolute prerequisites of section 136(1) of the [Persons and Family Act] – a resolution for the founding the association – is missing.
>
> The second mandatory attachment to the application for registration – articles of association signed by the founders – is likewise missing.
>
> When the applicants first applied for registration on 16 March 1998, they were instructed to submit articles of association signed by the founders. This instruction has not been complied with. The articles ... dated 27 September 1997 are not signed. Alongside the articles the applicants have submitted a separate sheet, stating: 'The articles of association of Ilinden were discussed and adopted at the founding meeting on 26 October 1997'. After this text follow only the signatures of the members of the management committee. The presentation of articles of association signed by the

founders is an absolute prerequisite for [registration]. On this ground alone – the failure to comply with the requirements of section 136(1) of the [Persons and Family Act] – the registration of [Ilinden] must be refused.

The court considers it necessary to note that, alongside the above-mentioned [reasons to refuse registration], there are a number of serious discrepancies between the submitted articles of association and the laws of [Bulgaria], which render the registration inadmissible.

In clause 1 of its articles of association [Ilinden] defines itself as a 'Macedonian national organisation on ethnical basis and origin ... which is the successor and continuer of the national liberation struggle of the Macedonian nation ... and of the Macedonian fighters who have fallen victim to the Bulgarian State terrorism and genocide'.

This texts clearly shows that the association considers itself as 'successor' and continuer of ... the 'national liberation struggle of the Macedonian nation'... The evoking of historical events in which the Bulgarian people fought for the protection of its national interests [and] for the restoration of the Bulgarian State is puzzling in the context of an activity which is to be carried out against this same State. It is not clear how an association may be a 'successor' of 'fighters fallen victim' but probably the applicants wanted to underscore that they intend to lead a 'national liberation struggle' on the territory of the Republic of Bulgaria through uprisings, which process is expected to lead to victims. Read this way, clause 1 of the articles raises serious doubts as to the peaceful means for the achievement of the goals of the association declared in clause 7. Clause 2(1) of the articles recognises the territorial integrity of the country, its laws and Constitution, but under a condition: 'if they are consistent with international law and international agreements on human rights, fundamental freedoms and the rights of minorities'. The reservations relating to respect for the territorial integrity of the country continue in clause 2(2) of the articles, which introduces the concept of modification of the borders through 'negotiations'. The association's goal – to achieve a modification of the borders of Bulgaria through taking of territory away is clearly spelled out in clause 3 of the articles, which indicates that [Ilinden] 'expresses and defends the civil, political, national and social and economic rights of Macedonians living on Macedonian land under Bulgarian occupation (jurisdiction) and of the Macedonians living in Bulgaria'. The use of the term 'occupation' indicates that, according to the applicants, the Republic of Bulgaria includes forcibly annexed 'Macedonian' lands, for the liberation of which they will lead a 'national liberation struggle'. This idea is underscored in several other provisions of the articles. Thus, clause 4 speaks of protection against Bulgarian 'assimilation' through cultural autonomy of Pirin Macedonia, which takes as a given that the population there is not Bulgarian, clause 5 [speaks of] 'taking the Macedonians out' of the state of [being subjected to] 'discrimination and assimilation' by the Bulgarian State.

Clause 7 of the articles indicates that the association will organise peaceful assemblies, meetings, marches and demonstrations with demands for political rights, and that it will participate in elections through the nomination of candidates. Therefore, even though it claims to be a non-profit-making association, Ilinden proclaims that it will carry out a political activity within the meaning of Article 11 § 3 of the Constitution and section 13(3) of the Political Parties Act.

Article 12 § 2 of the Constitution provides that associations may not pursue political goals and carry out political activities that are characteristic solely of political parties. This prohibition is developed in section 13(1) and (5) of the Political Parties Act. An association which pursues political goals such as those clearly designated by the applicants here may not be registered [as such].

Apart from the political character of the goals and of the future activity [of the association], the aforesaid leads to the conclusion that [Ilinden] is an organisation directed against the sovereignty, the territorial integrity and the unity of the nation and towards the incitement of national hatred, and is not categorically excluding the use of violence.

Clauses 1, 2, 4, 6, and 7 of the articles of the association contain suggestions [that there exists] a Macedonian ethnos [constituting a] minority and deprived of the rights that the Constitution bestows upon all Bulgarian citizens.

There is no Macedonian minority in Bulgaria. There are no historical, religious, linguistic, or ethnical grounds for such an assertion. [Such an assertion], coupled with the declarations alleging 'assimilation, discrimination and xenophobia' in respect of the 'Macedonians', is in reality directed against the unity of the nation. Every organisation committed to such a political platform is prohibited by virtue of Article 44 § 2 of the Constitution. ..."

The management committee of Ilinden appealed to the Sofia Court of Appeals. They argued that the Blagoevgrad Regional Court had deliberately misconstrued the articles of association. Ilinden had no political goals and had never intended to dispute the territorial integrity and the sovereignty of Bulgaria, nor to incite violence or ethnic hatred. The court had refused registration because of its mistaken finding that the articles insinuated the existence of a Macedonian ethnos having a minority character. Also, as there had apparently been doubt about technical problems with the registration documents, the management committee submitted a fresh copy of the minutes of the founding meeting of the association. It also submitted a list of signatures of the founders of Ilinden who were not members of the management committee, apparently with the purpose of remedying the deficiency noted by the Blagoevgrad Regional Court – that the articles of association bore only the signatures of the members of the management committee, not of all founders.

The Sofia Court of Appeals dismissed the appeal in a judgment of 28 April 1998. The relevant parts of its opinion read:

"... this court finds that the prerequisites for entering [Ilinden] in the register of non-profit-making legal persons are missing. The first irregularity of the association is that the submitted articles are not signed by all founders, as mandated by section 136 of the Persons and Family Act. Furthermore, the articles contain a number of clauses which do not allow the registration of the association. Clause 1 indicates that [Ilinden] shall be 'a Macedonian national organisation [based] on ethnicity and origin', and clause 8 provides that 'only a Macedonian' may be a member of the organisation; such type of association is inadmissible and contrary to Article 6 § 2 of the Constitution, which prohibits privileges based on 'nationality, ethnic self-identity, origin'...

> In clause 7 of its articles the association sets itself political goals, which it may pursue only if registered [as a political party]. The formulated aims, such as 'participation in elections' [and] holding of 'meetings, assemblies and demonstrations' run also against Article 12 § 2 of the Constitution, which does not allow associations to perform political activities. The legal definition of 'political activity' given by section 13(3) of the Political Parties Act indicates that it includes precisely the holding of meetings, demonstrations, assemblies and other forms of public campaigning.
>
> Clause 4 of the articles provides that the association will carry out activities that are characteristic of a denomination ... : 'struggling to achieve autocephalous status of the Macedonian church and cutting off the assimilation activities of the Bulgarian priests' [; such activities] may be carried out only by non-profit-making organisations registered in compliance with section 133a of the Persons and Family Act and the Denominations Act.
>
> The theory of the applicants is that the association should be registered because its articles do not set forth political aims and the association is not founded on an ethnical or a national basis. These assertions are unfounded. On the one hand the submitted articles of association have not been signed by the founders, which precludes the possibility of registration ... On the other hand, the activities the articles envisage ... may not be carried out by such a type of association. This indicates that the irregularities in the founding of the association may not be rectified through the additional presentation of evidence; registration is therefore impossible."

The management committee of Ilinden appealed on points of law to the Supreme Court of Cassation. They argued that the Sofia Court of Appeals had erred in holding that the formation of an association could lead to discrimination. On the contrary, it was the exercise of a fundamental right. Also, Ilinden did not pursue one of the activities proscribed by Article 44 § 2 of the Constitution. As regarded the alleged political goals and activities of the association, they submitted that the Court of Appeals had misconstrued the term "political activity": the holding of meetings and marches was not the prerogative of political parties – they could be organised by any organisation or person. The statement of the court that the meaning of clause 4 of its articles of association was that Ilinden intended to engage in religious activities was tendentious and not true. In addition, the applicants complained that the Court of Appeals had repeated the conclusion of the Blagoevgrad Regional Court that they had not submitted a duly signed copy of the articles of association, apparently disregarding the fresh documents they had presented together with their appeal from the latter's judgment.

The Supreme Court of Cassation gave judgment on 12 October 1999. It dismissed the appeal in the following terms:

> "...The appeal is ill-founded.
>
> The Court of Appeals found that the submitted articles of association have not been signed by the founders, in accordance with the imperative rule of section 136 of the [Persons and Family Act]. Secondly, the articles contain a series of clauses precluding the registration of the association. Clauses 1 and 8 contravene Article 6 § 2 of the

Constitution, clause 7 [contravenes] Article 12 § 2 of the Constitution in conjunction with section 13(3) of the [Political Parties Act], [and] clause 4 [runs counter to] section 133a of the [Persons and Family Act].

The judgment of the Court of Appeals is well-founded. The finding that the legal requirements for the registration of the association have not been met corresponds to the documents in the case-file and more specifically to the articles of association [of Ilinden].

An association is registered pursuant to an application by its management committee which must be accompanied by a resolution for its founding and its articles of association, signed by the founders. This means a signed copy of the articles and not separate lists and minutes. [In addition,] Article 6 § 2 of the Constitution does not allow privileges on the basis of nationality, ethnic self-identity or origin, etc. By Article 12 § 2 of the Constitution, associations may not pursue political goals and carry out political activities characteristic solely of political parties. Account should also be taken of section 13 of the [Political Parties Act]."

### *3. Ilinden's attempt to register in 2002*

On an unspecified date in 2002 Ilinden once more lodged an application for registration with the Blagoevgrad Regional Court. In a judgment of 18 November 2002 the court refused to register the association. Its opinion read, as relevant:

"The evidence ... indicates ... that the activities of the organisation which seeks registration are directed against the sovereignty and the territorial integrity of the country and the unity of the nation...

... The organisation states that it is a successor and continuer of the 'national liberation struggle of the Macedonian nation', including the 'Macedonian fighters who have fallen victim to the Bulgarian State terrorism and genocide'[. Its articles of association] specify that [the organisation] will respect the territorial integrity of the Republic of Bulgaria, but only if '[it is] consistent with international law and international agreements on human rights, fundamental freedoms and the rights of minorities'; [that the organisation] will 'voice and protect the civil and social and economic rights of the Macedonians who live on Macedonian soil under Bulgarian occupation (jurisdiction) and of the Macedonians who live in Bulgaria'[. The articles also] insist that 'the process of assimilation in Pirin Macedonia must be stopped'. Obviously, the aim is to distort the historical truth and to ignore the Bulgarian character of certain geographical regions [and] to cause overt opposition of one part of the population to another. This also threatens the territorial integrity of the country, while Article 44 § 2 of the Constitution prohibits organisations engaging in such an activity.

Even if, despite [what was found] above, it is assumed that the activities of [Ilinden] do not run counter to the Constitution, by Article 12 § 2 of the Constitution associations may not pursue political goals and carry out political activities that are characteristic solely of political parties. The political character of the aims [of Ilinden] is clearly indicated by [its articles of association], while the [applicable law] provides that organisations seeking to engage in political, trade union or religious activities shall be regulated in a separate statute.

All this leads to the conclusion that what is sought is the registration of an association whose aims are illegal. It cannot be accepted that what is at issue is an organisation seeking to preserve the historical traditions and the cultural riches of a specific community ... The realisation of the true aims [of Ilinden] would no doubt be at the expense of the unity of the Bulgarian nation [and] the sovereignty and the territorial integrity [of the country], which is declared inviolable by Article 2 § 2 of the Constitution."

## B. Relevant domestic law

### *1. The Constitution of 1991*

**Article 2 § 2**

"The territorial integrity of the Republic of Bulgaria shall be inviolable."

**Article 6 § 2**

"All citizens shall be equal before the law. There shall be no privileges or restriction of rights on the grounds of race, nationality, ethnic self-identity, sex, origin, religion, education, opinion, political affiliation, personal or social status, or property status."

**Article 11 § 3**

"Parties shall facilitate the formation of the citizens' political will..."

**Article 12 § 2**

"Associations ... may not pursue political goals or carry out political activities that are characteristic solely of political parties."

**Article 43 § 1**

"Everyone shall have the right to peaceful and unarmed assembly at meetings and marches."

**Article 44**

"1. Citizens may freely associate.

2. Organisations whose activity is directed against the sovereignty [or] the territorial integrity of the country and the unity of the nation, towards the incitement of racial, national, ethnical or religious enmity ... as well as organisations which seek to achieve their goals through violence are prohibited.

3. The law shall specify the organisations which are subject to registration, the manner of their dissolution, as well as their relations with the State."

### *2. The Persons and Family Act of 1949*

At the relevant time this act regulated the formation, status and dissolution of non-profit-making legal persons. Its pertinent provisions were:

**Section 133a**

"Non-profit-making legal entities carrying out an activity characteristic of a denomination or performing a religious or a religious-educational activity shall be registered ... after assent being given by the Council of Ministers."

**Section 134**

"An association shall acquire legal personality after its entry in the register [kept by] the Regional Court."

**Section 136(1)**

"An association shall be registered pursuant to an application by [its] management committee [to which shall be enclosed] a resolution for its founding and its articles of association, signed by the founders..."

**Section 138**

"Associations shall be managed in accordance with [their] articles of association, which must contain provisions in respect of [their] name, goals, means..."

### *3. The Political Parties Act of 1990*

This act, which was superseded by new legislation in 2001, regulated the formation, registration, functioning and dissolution of political parties. Its relevant provisions read as follows:

**Section 13**

"1. A public organisation which has not been registered as a political party may not carry out the activity of a political party.

2. A [public organisation] which has not been registered as a political party may not carry out organised political activities [on the premises of] enterprises, government agencies and organisations.

3. 'Organised political activities' shall mean the holding of meetings, demonstrations, assemblies and other forms of campaigning in favour of or against a political party or an election candidate.

4. If a public organisation ... clearly carries out the activity of a political party, the regional prosecutor shall offer that it be dissolved or register as a political party within one month.

5. If the organisation under the foregoing subsection does not cease its political activity or register as a political party, it shall be dissolved...”

### *4. The Meetings and Marches Act of 1990*

**Section 2**

“Meetings and marches may be organised by individuals, associations, political or other public organisations.”

## COMPLAINT

The applicants complained under Article 11 of the Convention that in 1998-99 the courts had refused to register Ilinden. They submitted that the reasons on which the courts had relied to ground their refusal had been arbitrary, had been based on a distorted interpretation of the relevant facts, and had not in reality been grounded in the provisions of domestic law. In their view, this was apparent from the disparate reasons given by the courts of different levels and from the frivolous interpretations they had given to the relevant legal provisions. The applicants also relied on Article 6 of the Convention. They also submitted, relying on Article 14 of the Convention, that the refusal of the courts to register their association had been arbitrary and had been motivated by the fact that they were Macedonians.

## THE LAW

The Court considers that the issues raised by the applicants’ complaint fall most naturally within the scope of Article 11 of the Convention. Accordingly, it will consider the complaint under that provision only.

Article 11 provides, as relevant:

“1. Everyone has the right to ... freedom of association with others...

2. No restrictions shall be placed on the exercise of [this right] other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others. ...”

The Government submitted that the restriction of the applicants' freedom of association had not been arbitrary.

As regards lawfulness, the Government argued that the refusal to register Ilinden had been based on the provisions of the Constitution (Articles 12 § 2 and 44 § 2), the Persons and Family Act of 1949 (sections 134 et seq.) and the Political Parties Act of 1990 (section 13).

The Government further argued that the measures complained of pursued a wide range of legitimate aims.

Firstly, they pursued the aims of protecting national security and public safety and preventing disorder and crime. The goals of Ilinden, as set forth in its articles – to continue the national liberation struggle against the Bulgarian State terrorism and genocide – posed a serious threat to the national security of the country. The facts of *Stankov and the United Macedonian Organisation Ilinden* (cited above) indicated that there had been numerous incidents, clashes with the police and profanations of national symbols which had occurred during the events organised by Ilinden. Viewed in this optic, the desire to participate in the politics of the country and the existence of articles of association which called for violence revealed the true aim of the organisation – to seek the secession of Pirin Macedonia from the territory of Bulgaria.

Secondly, the refusal to register Ilinden pursued the aim of protecting the rights and freedoms of others. No one challenged the right of the supporters of Ilinden to define themselves as Macedonians. This was apparent from the latest census, according to which 5,071 persons, 3,117 of which in the Blagoevgrad region, had defined themselves as Macedonians. However, the right to associate should be exercised in a manner not to infringe the rights and freedoms of the other 341,173 persons in the Blagoevgrad region, which defined themselves as Bulgarians, Turks, Roma, Armenians, Greeks, etc.

In the Government's submission, the refusal to register Ilinden had been due to a pressing social need and had been proportionate to the legitimate aims pursued.

By section 136 of the Persons and Family Act, the registration of an association was effected pursuant to an application by its management committee, signed by all members of the committee. Further, at the founding meeting all founders had to adopt a resolution for the founding of the association, adopt its articles and elect a management committee. The minutes of the founding meeting, as well as the adopted articles of association, had to be signed by all founders. An association could only be registered if these conditions had been complied with. Despite the fact that the Blagoevgrad Regional Court had twice indicated to the applicants the deficiencies in the documents they had presented, they had failed to comply with the requirements of the law. The Blagoevgrad Regional Court had held that "[o]n this ground alone – the failure to comply with the requirements of

section 136(1) of the [Persons and Family Act] – the registration of [Ilinden] [had to] be refused". The Court of Appeals had likewise found that the imperative rule of section 136 of the Persons and Family Act had not been complied with. The applicants had not submitted a signed copy of the articles, but only two separate documents which were of no legal value. The Supreme Court of Cassation had also found that the conclusion that the prerequisites for registration had been missing had been supported by the submitted documents, in particular the articles of association. These findings by the domestic courts indicated that the applicants had not complied with the formal requirements of the law. On the other hand, the refusal to register Ilinden did not preclude the applicants from submitting a fresh registration request. In order to avoid a second refusal, they only had to rectify the documents submitted to the court, so as to make them compliant with the legal requirements.

The Government further submitted that alongside these formal omissions by the applicants, the domestic courts had grounded the refusal to register Ilinden on the contents of its articles of association. All three levels of court had pointed out that certain clauses of Ilinden's articles contradicted the Constitution and the laws of Bulgaria.

Thus, for instance, the Blagoevgrad Regional Court had found that clause 1 of the articles led to the conclusion that the applicants had the intention to conduct a national liberation struggle on the territory of Bulgaria. There was certain doubt as to whether the attainment of this aim would be pursued by peaceful means. Further, clause 3 of the articles spoke of "occupation", which term, viewed in the context of the idea for the continuation of national liberation war, could only be construed in the manner this had been done by the Blagoevgrad Regional Court. The articles thus indicated that Ilinden' objectives were directed against the sovereignty and the territorial integrity of the country and the unity of the nation, which made them incompatible with the democratic principles and the constitutional provisions.

The text of clause 5 of the articles indisputably indicated that the goals of the association would be to fight against the Bulgarian State and insinuated that the State led a discrimination and assimilation policy vis-à-vis de Macedonians living in Bulgaria.

The Government observed that while the articles of association presented during the first registration attempt in 1990-91 had laid more emphasis on educational and cultural aims, in the new articles the political aims had taken precedence. Thus, for example, clause 7 of the articles provided that the association would participate in elections, which went against Article 12 § 2 of the Constitution and section 13(1) of the Political Parties Act.

In sum, the Government submitted that the interference with the applicants' freedom of association had been lawful and necessary in a democratic society in the interests of national security and public safety, for

the prevention of disorder and crime and for the protection of the rights and freedoms of others. It therefore invited the Court to declare the application manifestly ill-founded.

The applicants argued that by refusing to register Ilinden the authorities had infringed their rights under Article 11 of the Convention. The refusal of the courts had been based on deliberately erroneous findings in respect of the relevant facts and a misconstruction of the applicable law. It was clear that freedom of association could not be subjected to restrictions other than those which were provided for by law for the protection of national security and public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others.

The applicants submitted that the Government's averment that Ilinden had been implicated in numerous incidents, clashes with the police and profanations of national symbols was calumnious. On the contrary, all incidents referred to by the Government had been provocative actions of the authorities who had tried to hamper the organisation's registration. Ilinden's articles of association did not contain any calls to violence. Ilinden did not have political goals; it was conceived as a cultural and educational organisation. Its aim was not to deny the Bulgarian character of certain geographical regions or to cause a rift between different groups of the population, but to protect the rights and freedoms of part of the citizens of Bulgaria. The Government's averment that Ilinden's goal was to seek secession of Pirin Macedonia was not supported by any evidence. The refusal to register the organisation had in fact been based on the views held by its members, which differed from the officially sanctioned opinions.

The applicants further argued that Ilinden was not directed against the sovereignty or the territorial integrity of Bulgaria or against the unity of the nation. The fact that its articles of association spoke of continuation of the "national liberation struggle" could not change this conclusion. The organisation had been founded as an educational organisation which would attain its goals exclusively through peaceful means. Opposing State genocide and terrorism was not illegal. On the contrary, it was a national and an international priority. Therefore an organisation whose aim was to resist the trampling of the rights of a national minority and to seek to protect its interests could not be illegal.

The applicants further contested the numbers provided by the Government about the population of the Blagoevgrad region. They submitted that it was an official policy to ignore the fact that there existed in Bulgaria a considerable Macedonian minority whose rights were completely negated. One of the aims of the organisation was to protect these rights.

As regards the registration documents, the applicants conceded that initially there had been certain irregularities, but that, in compliance with the instructions of the court, these had been rectified. The applicants pointed out that in 2002 they had tried to register Ilinden again, this time fully

complying with the technical requirements of the law, but that the Blagoevgrad Regional Court had again refused registration. The applicants also stated in some cases the courts allowed associations to be registered without providing signed copies of their articles of association or minutes of their founding meetings.

Finally, the applicants argued that Ilinden did not pursue political goals and did not intend to carry out political activities that are characteristic solely of political parties. The holding of meetings and the participation in elections were not the privileges of political parties only. Meetings could also be organised by private individuals and religious communities, as well as by non-profit-making associations.

The Court considers, in the light of the parties' submissions, that the complaint raises serious issues of fact and law under the Convention, the determination of which requires an examination of the merits. The Court concludes therefore that this complaint is not manifestly ill-founded within the meaning of Article 35 § 3 of the Convention. No other ground for declaring it inadmissible has been established.

For these reasons, the Court unanimously

*Declares* the application admissible, without prejudging the merits of the case.

Søren NIELSEN
Registrar

Christos ROZAKIS
President